

STATE OF NEW YORK

1010--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. EPSTEIN, MAMDANI, SHIMSKY, LEVENBERG, GIBBS, BURDICK, GONZALEZ-ROJAS, KELLES, WEPRIN, MEEKS -- Multi-Sponsored by -- M. of A. WOERNER -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to providing notice of the death of an incarcerated individual occurring in the custody of the department of corrections and community supervision

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 624 of the correction law, as amended by chapter 322 of the laws of 2021, is amended to read as follows:

§ 624. Next of kin; death of incarcerated individual. 1. (a) The department shall ~~[be responsive to inquiries from]~~ promptly notify the next of kin and any other person designated as the representative of any incarcerated individual whose death takes place during custody ~~[regard-~~
~~ing]~~.

(b) The department shall promptly notify the next of kin and any other person designated as a representative of the circumstances surrounding the death of such incarcerated individual, the medical procedures used and the cause of death including preliminary determinations and final determination as reported by an autopsy report as such information becomes available.

(c) The next of kin and other person designated as a representative shall be identified from the emergency contact information previously provided by the incarcerated individual to the department.

2. Within twenty-four hours after the next of kin and any other person designated as a representative has been notified of such death, the department shall publish public notice of such death on the department's website.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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